Standard of Care Fact Pattern

Mr Okafor is driving across town one quiet Sunday morning. He is feeling a little bit dizzy, but he wants to drive himself and his son to the care home to see his aging mother, and he figures the dizziness will clear up. As Mr Okafor nears an intersection, his dizziness worsens significantly and his vision begins to blur. He continues into the intersection, where he knocks a boy off his bike (but does not know that he has done so).

When they pass the intersection, Mr Okafor pulls over and asks his 15-year-old son Ikenna to drive instead. As Ikenna is driving to the care home, he crashes into a torts professor who is making her way to class.

The torts professor has significant injuries, and has to be taken to the hospital and intubated (i.e. have a breathing tube inserted). The only physician available in the emergency room is a resident who is three years into his residency (i.e. he has gone to medical school and done three years of practical experience, but is not yet a fully qualified doctor). He performs the intubation according to his training and the hospital's procedures, but because there is no available X-ray machine, he cannot do an X-ray to check the tube is in the right place.

Hospital procedures state that an X-ray has to be taken of an intubated patient within 4 hours of intubation. The resident takes the X-ray 3.5 hours after the intubation, by which time he discovers that the tube (though working properly) has damaged the professor's larynx during insertion, permanently affecting her ability to speak.

Analyze whether (a) Mr Okafor, (b) Ikenna, and (c) the resident physician breached the standard of care. Do NOT consider issues of causation.